

THE PUNJAB LETTERS OF ADMINISTRATION AND SUCCESSION CERTIFICATES ACT 2021

(IX of 2021)

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**¹THE PUNJAB LETTERS OF ADMINISTRATION AND SUCCESSION
CERTIFICATES ACT 2021**

(IX of 2021)

[17 May 2021]

**An
Act**

*to provide for an efficacious and speedy mechanism for issuance of Letters of
Administration and Succession Certificates.*

It is expedient to provide for an efficacious and speedy mechanism for facilitating issuance of Letters of Administration and Succession Certificates, aimed at curtailing fraud and forgery.

Be it enacted by Provincial Assembly of the Punjab as follows:

1. Short title, extent and commencement.– (1) This Act may be cited as the Punjab Letters of Administration and Succession Certificates Act 2021.

(2) It extends to whole of the Punjab.

(3) This Act or any part thereof shall come into force on such dates as the Government may, by notification in the official Gazette, appoint.

2. Definitions.– In this Act:

(a) “Authority” means the National Database and Registration Authority established under section 3 of the National Database and Registration Authority Ordinance, 2000 (VIII of 2000);

(b) “factual controversy” includes an objection by legal heirs or by any claimant of legal heirship, any dispute which may arise in establishing the identity of legal heirs which is not resolvable by the Authority or any situation, matter or event requiring adjudication or recording of evidence or where at least one of the legal heirs is a minor;

(c) “Government” means Government of the Punjab;

(d) “legal heir” means a person who has entitlement to a share in the property of the deceased;

(e) “prescribed” means prescribed by the rules; and

(f) “rules” means the rules made under this Act;

3. Issuance of Letters of Administration or Succession Certificates.– Notwithstanding anything contained in any other law for the time being in force, the Authority ²[or a civil court] may issue Letters of Administration or Succession Certificates, as the case may be, to the legal heirs of a deceased in respect of

¹This Act was passed by Provincial Assembly of the Punjab on 17 May 2021; assented to by the Governor of the Punjab on 17 May 2021; and, was published in the Punjab Gazette (Extraordinary), dated: 17 May 2021, pp.9199-9201.

²Inserted by the Punjab Letters of Administration and Succession Certificates (Amendment) Act 2025 (LXII of 2025), published in the Punjab Gazette (Extraordinary), dated : 31 July 2025, p 589.s.2(a).

immovable or movable property, in accordance with the Family Registration Certificate maintained by the Authority ³[:]

⁴[Provided that in case of a civil court, the procedure as provided in the Succession Act 1925 (XXXIX of 1925), shall be followed.]

4. Establishment of Succession Facilitation Unit.– (1) The Authority shall establish a Succession Facilitation Unit for the purpose of receipt, processing and assessment of applications for grant of Letters of Administration and Succession Certificates.

(2) For the purpose of subsection (1), the Authority may notify any of its existing offices as Succession Facilitation Unit, at such place or places as it may deem appropriate.

(3) The Authority may, from time to time, appoint officers, staff, experts, consultants, advisers and other employees, on such terms and conditions as it may deem fit, for the purpose of carrying functions under this Act.

5. Functions of Succession Facilitation Unit.–The Succession Facilitation Unit shall perform the following functions:

- (a) receive applications for grant of Letters of Administration and Succession Certificates, as the case may be, from legal heirs of the deceased;
- (b) process and assess the applications by way of a summary enquiry as prescribed, and in case of any factual controversy amongst the legal heirs decline to assess the applications for filing afresh before the appropriate forum in accordance with the provisions of the Succession Act, 1925 (XXXIX of 1925) or any other applicable law;
- (c) maintain an online portal providing for updated record of the Letters of Administration and Succession Certificates issued under this Act; and
- (d) discharge or perform such functions as are incidental, ancillary or necessary for carrying out the purposes of this Act.

6. Application for Letters of Administration or Succession certificates.– (1) An application for grant of Letter of Administration or Succession Certificate, as the case may be, shall be made to the Authority by the legal heirs:

Provided that legal heirs may also authorize in the prescribed form, one amongst themselves, to act on behalf of all other legal heirs, for the purpose of filing an application under this Act.

(2) An application may be filed in the notified office of the Authority within whose jurisdiction the deceased ordinarily resided at the time of his death, or within whose jurisdiction any property or asset of the deceased is located.

- (3) The following documents shall be appended along with the application:
 - (a) death certificate of the deceased;
 - (b) list of the legal heirs and copies of their national identity cards;

³Substituted for “full stop” by the Punjab Letters of Administration and Succession Certificates (Amendment) Act 2025 (LXII of 2025), published in the Punjab Gazette (Extraordinary), dated : 31 July 2025, p 589.s.2(b).

⁴Added by the Punjab Letters of Administration and Succession Certificates (Amendment) Act 2025 (LXII of 2025), published in the Punjab Gazette (Extraordinary), dated : 31 July 2025, p 589.s.2(b).

- (c) an authorization in the prescribed form by the legal heirs in favour of the applicant as provided in proviso to subsection (1); and
 - (d) details of immovable and movable property in respect of which the Letter of Administration or Succession Certificate is applied for.
- (4) Upon receipt of the application, a notice to the general public shall be published on a web portal to be maintained by the Authority and in one English language and one Urdu language daily newspaper of wide circulation.
- (5) Where no objection or claim is received within fourteen days of the publication of notice, the Authority shall, in any of its notified offices, obtain the bio-metric verification of the applicant and all the legal heirs:

Provided that where bio-metrics of a legal heir is not verified, the Authority may require the legal heir to appear in person before the Authority on a date fixed by the Authority:

Provided further that the Authority may resort to any other modern device with a view to satisfying itself as to the identity of any legal heir.

Explanation: The bio-metric verification can be undertaken at any notified office within Pakistan or abroad.

(6) Upon satisfactory compliance of the codal formalities mentioned in this section, the applicant shall appear before the Authority on a date fixed by it, whereafter the Authority shall issue the Letter of Administration or Succession Certificate, as the case may be, in favour of all legal heirs of the deceased with details of their respective shares as provided in the personal law of such legal heirs.

(7) The Letters of Administration or Succession Certificates issued under this Act shall have the same effect as if the same have been issued under the Succession Act, 1925 (XXXIX of 1925).

7. Forms of Letters of Administration and Succession Certificates.— Letters of Administration and Succession Certificates shall be issued, as nearly as circumstances admit, in the forms prescribed by the Authority.

8. Objection to Letters of Administration and Succession Certificates.— Any person objecting to Letters of Administration or Succession Certificates, as the case may be, after the issuance of the Letters of Administration or Succession Certificates by the Authority, may seek remedies available under any other applicable law.

9. Fee and costs.— (1) The Authority may charge the prescribed fees or other sums for its services under this Act including sums incurred on publication of public notice.

(2) The charges or sums received under subsection (1) shall be credited to the NADRA Fund established under section 24 of the National Database and Registration Authority Ordinance, 2000 (VIII of 2000).

10. ⁵[* * * * *]

11. Penalty, offences and trial.— The provisions in relation to offences, penalties and trial mentioned in Chapter IX of the National Database and Registration Authority Ordinance, 2000 (VIII of 2000) shall apply *mutatis mutandis* under this Act.

⁵Omitted "Section 10" by the Punjab Letters of Administration and Succession Certificates (Amendment) Act 2025 (LXII of 2025), published in the Punjab Gazette (Extraordinary), dated : 31 July 2025, p 589.s.2(b).

12. Act to override other laws.– The provisions of this Act shall have effect notwithstanding anything contained in any other law for the time being in force.

13. Power to make rules.– The Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

14. Repeal.– The Punjab Letters of Administration and Succession Certificates Ordinance 2021 (VIII of 2021) is hereby repealed.